

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX----- X
CHRISTIAN DUSABLON,

SUMMONS

Plaintiff, Index No.:

-against-

The Basis of Venue is:
Location of IncidentTHE CITY OF NEW YORK, NYPD OFFICER
BERNADETTE CORRY, Shield No. 11041, NYPD
OFFICER ALAN DALESSIO, Shield No. 024855, NYPD
OFFICER CHRISTOPHER RATH, Shield No. 21416,
NYPD OFFICER SUKENNIFKUFF, Tax ID 961337, and
NYPD OFFICERS JOHN AND JANE DOES NUMBERS
1-10,Plaintiff designates Bronx
County as the place of trial.Defendants.
----- X

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 22, 2020

Yours, etc.

CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES PLLC
Attorney for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICERS BERNADETTE CORRY (SHIELD NO. 11041), ALAN DALESSIO (SHIELD NO. 024855), CHRISTOPHER RATH (SHIELD NO. 21416), AND SUKKENIFKUFF (TAX ID 961337), 45th Precinct; 2877 Barkley Avenue, Bronx, NY, 10465

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

CHRISTIAN DUSABLON,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD OFFICER
BERNADETTE CORRY, Shield No. 11041, NYPD
OFFICER ALAN DALESSIO, Shield No. 024855, NYPD
OFFICER CHRISTOPHER RATH, Shield No. 21416,
NYPD OFFICER SUKENNIFKUFF, Tax ID 961337,
AND NYPD OFFICERS JOHN AND JANE DOES
NUMBERS 1-10,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff CHRISTIAN DUSABLON, by his attorneys, Caitlin Robin & Associates, PLLC,
as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On February 13th, 2020, at approximately 9:30 a.m., plaintiff CHRISTIAN DUSABLON, while lawfully inside the 45th Precinct located at 2877 Barkley Avenue in Bronx, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. In addition, Plaintiff was subjected to excessive force by the defendant officers, causing him to suffer prolonged physical pain as well as mental and emotional injury. Plaintiff was then unlawfully imprisoned at the 45th Precinct Police Station for approximately 35 hours before he was arraigned in Bronx County Criminal Court and released on his own recognizance. Furthermore, Plaintiff was subject to post-release harassment by defendant New York City police officers, with an additional arrest, after he was released from jail. Plaintiff was denied the right to due process and a fair trial for false charges. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, subjected to excessive force, falsely arrested, falsely imprisoned, and denied plaintiff the right to due process and a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff CHRISTIAN DUSABLON is a resident of the state of New York.
3. NYPD OFFICERS BERNADETTE CORRY, Shield No. 11041, ALAN DALESSIO, Shield No. 024855, CHRISTOPHER RATH, Shield No. 21416, and OFFICER SUKENNIFKUFF, Tax ID 961337, are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
4. NYPD OFFICERS BERNADETTE CORRY, Shield No. 11041, ALAN DALESSIO, Shield No. 024855, CHRISTOPHER RATH, Shield No. 21416, and OFFICER SUKENNIFKUFF, Tax ID 961337, were at all times relevant herein, assigned to the 45th Precinct.
5. NYPD OFFICERS BERNADETTE CORRY, Shield No. 11041, ALAN DALESSIO, Shield No. 024855, CHRISTOPHER RATH, Shield No. 21416, and OFFICER SUKENNIFKUFF, Tax ID 961337, are being sued in their individual and official capacities.
6. NYPD OFFICERS JOHN DOE NUMBERS 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
7. NYPD OFFICERS JOHN DOE NUMBERS 1-10 were at all times relevant herein, assigned to the 45th Precinct.
8. NYPD OFFICERS JOHN DOE NUMBERS 1-10 are being sued in their individual and official capacities.
9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

11. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

12. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on October 23, 2020.

13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

14. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

15. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

16. On February 13th, 2020, at approximately 9:30 A.M., Plaintiff was lawfully present inside the 45th Precinct in The Bronx, New York, when the defendant police officers unlawfully stopped, questioned, searched, and falsely arrested Plaintiff without probable cause or legal justification.

17. Plaintiff was involved in a car accident a couple of weeks prior to this date, and Defendant Officer Corry had been the responding officer at that scene.

18. Plaintiff and Defendant Officer Corry had stayed in touch since the accident, and had even met up for a meal together at a nearby pizzeria.

19. Plaintiff had been waiting on the accident report to be completed so he could forward that information to his insurance company, and Defendant Officer Corry had text messaged him letting him know that the report was ready to be picked up at the 45th Precinct.

20. Plaintiff drove to the 45th Precinct on the morning of February 13th and went inside, leaving his girlfriend, Christina Dontiatori, sitting in the car.

21. Once inside the precinct, Plaintiff went to the front desk and inquired about the accident report.

22. Defendant Officers Rath and Dalessio began teasing the Plaintiff and told him his report wasn't ready yet; defendant Officer Corry was not present.

23. As defendant officers grew more insistent that he could not have the accident report, Plaintiff asked them if he could get them on video telling him it wasn't ready, so he could send that as proof to his insurance company.

24. When Plaintiff went to get his phone out, he was tackled, dragged through the gate, and thrown onto the floor by several defendant officers.

25. It was at this point that the defendant NYPD officers began to unlawfully arrest the plaintiff, restraining him with metal handcuffs and subjecting him to an unlawful pat-down search.

26. During his violent arrest, Plaintiff tried to tell defendant officers that they were hurting his shoulder, which had been injured in a prior incident, but defendant officers demonstrated no empathy toward his pain.

27. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

28. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

29. Plaintiff did not resist arrest.

30. After being unlawfully detained in a holding cell at the 45th Precinct, Plaintiff finally spoke with Defendant Officer Corry, who began to assure him that she would make sure he was released.

31. It was when defendant Officer Corry learned that Plaintiff had come to the station with his girlfriend that her demeanor suddenly changed, and she told the Plaintiff, "now you're getting charged with assault."

32. Plaintiff was then transported to Jacobi Medical Center, still in handcuffs, where he was x-rayed and given treatment for the pain in his shoulder.

33. Plaintiff was transported from the hospital back to the 45th Precinct, where he was asked by the Sergeant to explain the nature of his relationship with Defendant Officer Corry. Plaintiff refused to answer and asked for a lawyer, and was escorted back to the holding cell.

34. Plaintiff was then transported to Bronx County Central Bookings where he was unlawfully fingerprinted, photographed, and placed in another holding cell.

35. At no point did Defendant Officers recover any drugs, weapons, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

36. The defendant police officers provided the District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.

37. Specifically, the defendant police officers falsely stated to the District Attorney's Office that the plaintiff was guilty of assault, resisting arrest, criminal trespassing, and harassment.

38. Plaintiff was arraigned the following morning in Bronx County Criminal court at approximately 11:00 a.m.

39. On February 14th, 2020, after approximately 35 hours in unlawful custody, the Plaintiff was released on his own recognizance.

40. Plaintiff's shoulder injury was exacerbated by the Defendants conduct, causing more physical therapy treatment and potentially a new surgery.

41. The following day, February 16th, 2020, Plaintiff had been lawfully out driving his vehicle and pulled up in front of his home in the Bronx to find defendant NYPD officers waiting for him.

42. Defendant officers performed an unlawful search of Plaintiff's vehicle, but no illegal contraband was found.

43. At no time did defendant officers observe Plaintiff doing anything illegal or have reason to believe he was guilty of any crime.

44. Nonetheless, Plaintiff was arrested by Defendant Officer Sukkenifkuff and transported against his will back to the 45th Precinct.

45. Once at the 45th Precinct, Plaintiff was once again unlawfully fingerprinted, photographed, and placed in a holding cell.

46. After approximately three hours in unlawful custody, Plaintiff was released from the 45th Precinct with a Desk Appearance Ticket for Disorderly Conduct.

47. Plaintiff was forced to hire a private criminal defense attorney for \$10,000.00 to defend these false felony charges.

48. The felony charges which were falsely made against the Plaintiff by the defendant officers on February 13th, 2020 were dismissed and sealed on December 10, 2020.

49. The charges which were falsely made against the Plaintiff on February 16th, 2020 were dismissed and sealed on March 4, 2020.

50. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, using excessive force, falsely arresting and imprisoning, and denying Plaintiff the right to due process and a fair trial.

51. The unlawful search, seizure, use of excessive force, false arrest and imprisonment, and denial of Plaintiff's right to a fair trial by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

52. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

54. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

55. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

57. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

59. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

60. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

61. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. The illegal approach, pursuit, stop, questioning, and frisk employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

63. The conduct of defendants in stopping, frisking, and searching Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

64. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

65. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

66. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Unlawful Search

67. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. The illegal approach, pursuit, stop and search employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

69. Defendants lacked probable cause to search Plaintiff.

70. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

73. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth and Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

74. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 73 with the same force and effect as if more fully set forth at length herein

75. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

76. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

77. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

78. In withholding/creating false evidence against Plaintiff CHRISTIAN DUSABLON, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States

and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

79. As a result of the foregoing, Plaintiff CHRISTIAN DUSABLON sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

80. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

81. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

82. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

83. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

84. The use of excessive force by defendants by, amongst other things, tightly handcuffing him and causing further injury to his shoulder, constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

85. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

86. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 83 with the same force and effect as if more fully set forth at length herein.

87. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff, CHRISTIAN DUSABLON. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

88. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

89. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

90. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

91. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

92. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

93. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 92 with the same force and effect as if more fully set forth at length herein.

94. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

95. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

NINTH CAUSE OF ACTION

Failure to Intervene

96. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 95 with the same force and effect as if more fully set forth at length herein.

97. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

98. Defendants failed to intervene to prevent the unlawful conduct described herein.

99. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to strip search and other physical constraints.

100. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

101. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

102. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

103. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Assault

104. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 103 with the same force and effect as if more fully set forth at length herein.

105. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and

intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, that such acts caused apprehension of such contact in the Plaintiff.

106. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

107. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

108. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

109. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

Battery

110. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 109 with the same force and effect as if more fully set forth at length herein.

111. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner tackled Plaintiff and hurt his shoulder, with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

112. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

113. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

114. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

115. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

TWELFTH CAUSE OF ACTION

Malicious Prosecution

116. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 115 with the same force and effect as if more fully set forth at length herein.

117. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

118. Defendants commenced and continued a criminal proceeding against Plaintiff.

119. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for the charges for which they were prosecuted.

120. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

121. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate Plaintiff's Fourth Amendment rights.

122. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

123. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

124. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

104. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff CHRISTIAN DUSABLON demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
December 22, 2020

By: 
CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES PLLC
Attorney for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICERS BERNADETTE CORRY (Shield No. 11041), ALAN DALESSIO (Shield No. 024855), CHRISTOPHER RATH (Shield No. 21416), AND SUKENNIFKUFF (Tax ID 961337), 45th Precinct; 2877 Barkley Avenue, Bronx, NY 10465

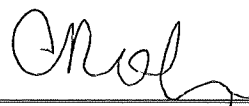
ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the

State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **CAITLIN ROBIN AND ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
December 22, 2020



CAITLIN ROBIN